

ADDENDUM TO LEASE AGREEMENT

This Addendum To Lease Agreement ("Addendum") is entered into as of the 10th day of August 2000, but effective for all purposes as of June 30, 2000 by and between:

BELLE REALTY OF LAFAYETTE, L.L.C., a Louisiana limited liability company, whose current mailing address is 101 Arnould Boulevard, Lafayette, Louisiana 70506 (hereinafter referred to as the "Lessor").

and

DELI MANAGEMENT, INC., a corporation organized under the laws of Texas and qualified to transact business in the State of Louisiana, whose current mailing address is 2400 Broadway, Beaumont, Texas 77702 (hereinafter referred to as the "Lessee").

RECITALS

WHEREAS, the Lessor and the Lessee entered into a certain Lease Agreement dated as of June 30, 2000 (the "Lease Agreement"); and

WHEREAS, the Lease Agreement provided in Section 1.01 that the Premises (as defined in the Lease Agreement) consisted of 4,500 square feet; and

WHEREAS, the actual Premises are to be constructed in accordance with plans and specifications prepared subsequent to the execution of the Lease Agreement; and

WHEREAS, the construction plans and specifications have been prepared and the actual square footage of the Premises as dimensioned by the plans and specifications is 4,613 square feet; and

WHEREAS, the Lessor and the Lessee wish to amend the Lease Agreement to provide for the actual square footage of the Premises and correct the Lease Agreement in all respects to reflect the accurate square footage of the Premises.

NOW THEREFORE, in consideration of the foregoing the mutual covenants contained herein and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged the parties hereto agree as follows:

1. Section 1.01 of the Lease Agreement is hereby amended by deleting therefrom the following language:

"Four Thousand Five Hundred (4,500) square feet"

and inserting in its stead the following language:

"Four Thousand Six Hundred Thirteen (4,613) square feet".



2. Section 4.01A is hereby amended by deleting the language thereof in its entirety and inserting the following in its stead:

"A. Base Rent. During the Initial Term, the Lessee shall pay to the Lessor a base rent which is calculated as follows:

*Years 1 through and including 5 of the Initial Term \$ 4,228.60 per month
Years 6 through and including 10 of the Initial Term \$ 4,613.00 per month"*

3. Section 4.01C is hereby amended by deleting the language thereof in its entirety and inserting the following in its stead:

"C. Monthly Rental Amount. Beginning on the Commencement Date and extending through December 31, 2000, the Total Monthly Rental Payment shall be calculated as follows:

<i>Base Rent</i>	<i>\$ 4,228.60</i>
<i>Common Area Maintenance Charges</i>	<i>384.40</i>
<i>Taxes and Insurance Charge</i>	<i><u>192.20</u></i>
<i>Total Monthly Rental Payment</i>	<i><u>\$ 4,805.20"</u></i>

4. Section 31.01 is hereby amended by deleting there from the following language:

*"Years 11 through and including 15 of the Initial Term \$ 4,875.00 per month
Years 16 through and including 20 of the Initial Term \$5,250.00 per month"*

and inserting in its stead the following language,

*"Years 11 through and including 15 of the Initial Term \$ 4,997.40 per month
Years 16 through and including 20 of the Initial Term \$ 5,381.80 per month"*

5. All other terms and conditions of the Lease Agreement not specifically modified or amended hereby shall remain and be in full force and effect.

[SIGNATURES APPEAR ON THE FOLLOWING PAGE]

E. E. R. II

THUS DONE AND SIGNED as of the date set forth above, but effective for all purposes and of June 30, 2000.

WITNESSES:

Jennifer Dickson
Printed Name: Jennifer Dickson

Debra B. Hebert
Printed Name: Debra B. Hebert

Linda B. Landry
Notary Public

LESSOR:

BELLE REALTY OF LAFAYETTE,
L.L.C., a Louisiana limited liability
company

By: Edward E. Abdalla, IV
Edward E. Abdalla, IV
Managing Member

WITNESSES:

Mike Neil
Printed Name: MIKE NEIL

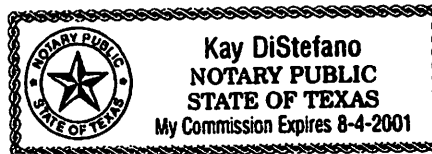
Lisa Robichau
Printed Name: Lisa Robichau

Kay DiStefano
Notary Public

LESSEE:

DELI MANAGEMENT, INC., a
Texas corporation

By: Joseph H. Tachier, Jr.
Printed Name: Joseph H. Tachier, Jr.
Printed Title: President



E. E. Abdalla, IV

ADDENDUM TO LEASE AGREEMENT

This Addendum is incorporated by reference into and is a part of that certain Lease Agreement (the "Lease") between Belle Realty of Lafayette, L.L.C., as Landlord (or "Lessor"), and Deli Management, Inc., as Tenant (or "Lessee"). The term "Premises" as used in this addendum shall mean the Premises described in the Lease. The term "Shopping Center" as used herein shall mean the "Boulevard Shopping Center Property". Except as otherwise indicated, all defined terms in the Lease shall have the same meaning in this Addendum.

1. **Conflicts.** In the event of any inconsistency between the provisions of this Addendum and any other portion of this Lease, the provisions of this Addendum shall prevail.

2. **Operating Expenses.** Notwithstanding anything contained in the Lease to the contrary, the following shall be excluded from Common Area Maintenance Charges (herein "Operating Expenses") for the purposes of the Lease:

(a) The cost of repairs or other work occasioned by fire, windstorm or other casualty.

(b) Leasing commissions, attorney's fees, costs and disbursements and other expenses incurred in connection with negotiations for leases with tenants, and similar costs incurred in connection with disputes between Landlord and tenants of the Shopping Center.

(c) Costs incurred in renovating or otherwise improving or decorating or redecorating space for tenants or other occupants in the Shopping Center or vacant leasable space in the Shopping Center.

(d) Costs of correcting defects (including latent defects) in the construction of the Shopping Center, parking areas or other improvements, or in the equipment used therein, except that, for the purposes of this subparagraph, conditions resulting from ordinary wear and tear and use, vandalism, and other matters not occasioned by construction defects shall not be deemed defects.

(e) Landlord's costs of electricity and other services sold to tenants and which are not standard for the Shopping Center, or for which Landlord is reimbursed by tenants as an additional charge or rental.

(f) The cost of any improvements, repairs, alterations, additions, changes, replacements, equipment, tools and other items which under generally accepted accounting principles are required to be classified as capital expenditures (whether incurred directly or through a lease or service contract or otherwise).

(g) Depreciation of the Shopping Center and all equipment, fixtures, improvements and facilities used in connection therewith.



(h) Material expenses in connection with services or other benefits of a type which are not standard for the Shopping Center and which are not available to Tenant without specific charge therefor, but which are provided to another tenant or occupant.

(i) Costs (including penalties, fines and associated legal expenses) incurred due to the violation by Landlord of the terms and conditions of the Lease, or any applicable federal, state, and local governmental laws, ordinances, orders, rules and regulations, which costs would not have been incurred but for such violation by Landlord.

(j) Overhead and profit increments paid to subsidiaries, partners or other affiliates of Landlord for services on or to the Shopping Center, any appurtenant garage or the property on which the Premises are located, to the extent that the costs of such services exceed competitive costs for such services rendered by persons or entities of similar skill, competence and experience, other than a subsidiary of Landlord. Management fees charged to Operating Expenses shall not exceed similar fees charged in connection with the operation of projects of like location, size, character and quality.

(k) Interest on debt or amortization payments on any mortgage or mortgages, and rental under any ground or underlying leases or lease (except to the extent the same may be made to pay or reimburse, or may be measured by, ad valorem taxes).

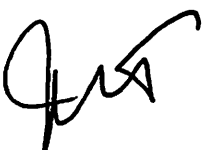
(l) Costs of Landlord's general corporate overhead and general corporate overhead and general administrative expenses, which would not be chargeable to Operating Expenses of the Shopping Center determined in accordance with generally accepted accounting principles, consistently applied; and all costs related to maintaining Landlord's existence as a corporation, partnership or other entity.

(m) Any compensation paid to clerks, attendants or other person in commercial concessions, if any, operated by Landlord.

(n) All services for which Tenant (or any other tenant of the Shopping Center specifically reimburses Landlord or for which Tenant pays directly to third persons.

(o) Advertising and promotional expenses incurred to publicize the Shopping Center primarily for leasing purposes.

Tenant, at its expense, shall have the right at all reasonable times to inspect Landlord's books and records relating to the Operating Expenses for any year in which Operating Expense charges are due, any such inspection to be conducted at Landlord's office during normal business hours; provided, however, Landlord agrees to reimburse Tenant for the cost of any such inspection conducted by or for it in the event the inspection proves that the Operating Expense charges charged to Tenant by Landlord hereunder for the period of time covered by such inspection shall have been overstated by four percent (4%) or more.

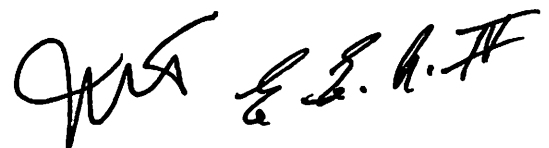
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3. **Default by Landlord.** Any provision in the Lease to the contrary notwithstanding, if Landlord fails to perform its obligations under the Lease and such failure (a) is the result of a condition within the Landlord's control, (b) interferes substantially with the normal use of the Premises or appurtenant parking and/or other common areas by Tenant as allowed herein, and (c) continues for more than three (3) consecutive business days, then the rental shall be proportionately abated until such interference is eliminated or the Premises are otherwise rendered tenantable again. Additionally, if such interference continues for a period of 30 or more consecutive days after written notice from the Landlord to the Tenant describing the nature of the Landlord's failure to perform its obligations under the Lease and Landlord's failure to cure or otherwise remedy the situation outlined in such notice within such time period, then Tenant shall have the right and option to cancel the Lease by giving written notice to Landlord within 15 days after the end of such 30 day period.

The Landlord and Tenant acknowledge and agree that construction of improvements to the area of the Shopping Center immediately adjacent to the Premises will occur subsequent to the Commencement Date of the Lease and that such construction, if performed in a workmanlike manner with ordinary care being exercised, will not be considered by the Tenant as a violation of this Section, a failure by Landlord to perform its obligations under this Lease or a substantial interference with the normal use of the Premises or the appurtenant parking and/or other common areas by Tenant.

4. **Tenant Rights to Perform Landlord's Obligations.** Notwithstanding any provision of the Lease to the contrary, if Landlord defaults in the observance or performance of any term or covenant required to be performed by it under the Lease, Tenant after not less than 30 days notice to Landlord may, but shall not be obligated to, remedy such default and in connection therewith may pay or incur reasonable expenses. Notwithstanding the foregoing, Tenant shall not have such right in the event Landlord takes action to cure the default within such 30 day period by is unable, by reason of the nature of the work involved, to cure the same within such period, provided Landlord continues such work diligently and without unnecessary delays. Additionally, Tenant shall have the right to remedy any default of an emergency nature in the event Landlord fails to commence curing any default creating an emergency situation promptly upon being given notice which is reasonable under the circumstances, and Tenant shall have the right to remedy such a default without notice (if the giving of notice is not reasonably practicable) in the event of an emergency. All sums expended or obligations incurred by Tenant in connection with the foregoing shall be paid by Landlord to Tenant upon demand and if Landlord fails to reimburse Tenant, Tenant may, in addition to any other right or remedy that Tenant may have, deduct such amount from subsequent installments of rent hereunder which from time to time thereafter become due to Landlord.

5. **Tenant Rights to Portions of Common Area.** Further, the highlighted portion of *Schedule H* shall be a "no build" area. Landlord agrees that it shall not construct or permit the erection or construction of any Shopping Center or other structure in the no build area and such area shall remain for the non-exclusive use as parking for Tenant's customers.



Tenant shall have the exclusive right to the use of the area outlined on *Schedule I*, for the purpose of providing an outdoor dining and seating area for Tenant's patrons. Tenant shall have the right, at its expense, to separate such area for such exclusive use by metal fence or other means and to restrict access to such area exclusively to tenant's patron's Landlord hereby grants to Tenant the exclusive use of such area, as well as the right to restrict access and use to such area to Tenant patrons. Landlord expressly agrees that Tenant shall not be required to provide or allow visitors to the Shopping Center or parties other than Tenant's patrons with access across or to such area. Tenant also has the right to place and use tables with umbrellas and chairs in said area. Tenant shall at its sole cost and expense be responsible for the maintenance and clearing of the exclusive use area and the Tenant shall be solely responsible for any injury or damage which occurs within the exclusive use area. The Tenant shall, upon termination or expiration of this Lease, remove any fence or other restrictive structure installed in connection with the exclusive use area.

6. **Restoration Following Casualty.** In addition to the right to terminate pursuant to the Casualty section of the Lease, if the damage to the Shopping Center in which the Premises are located or the Shopping Center has not been repaired and the Premises made ready for occupancy within 90 days after the date of the damage or destruction, then the Tenant shall have the right and option to terminate this lease by giving written notice to Landlord at any time within 15 days after the end of such 90 day period. Additionally, if the damage is to such an extent that it cannot reasonably be repaired and the Premises made ready for occupancy within 90 days after the date of the damage or destruction, then Tenant may terminate this Lease within 30 days after the date of the damage or destruction by giving written notice to Landlord. Following any casualty loss which renders the Premises untenantable, Tenant shall be entitled to partial or total abatement of rent from the date of the damage or destruction until the Premises are rendered tenantable notwithstanding any negligence on the part of Tenant. If only a portion of Premises is rendered untenantable, then Tenant's rent shall be partially abated taking into account the diminution in value of the Premises. If the lease is terminated, rent shall be prorated to the date of the damage or destruction and any prepaid rents or other prepaid amounts shall be refunded to Tenant. In the event Tenant is required to repair or replace any portion of the Premises all insurance proceeds purchased by Tenant shall be payable to Tenant, and rent shall abate until Tenant's business opens.

7. **Indemnification; Insurance.** Notwithstanding any term of the Lease to the contrary, the indemnification by Tenant shall be only for claims by third parties and not for claims by Landlord or Tenant. Additionally, Landlord shall indemnify and hold Tenant harmless from and against claims by third parties for any loss or damage to property or person to the extent caused by the acts or omissions of Landlord or its agents or employees. Landlord shall be responsible for obtaining and maintaining insurance covering the Shopping Center, and Tenant shall be responsible for insuring its fixtures and contents, against fire and other causes included in standard extended coverage by policies. Each party hereby releases and waives all claims, rights of recovery and causes of action against the other party, their officers, directors, employees, agents or invitees, or, in case of tenant, its subtenants, in connection with any loss or damage to the Premises, the Shopping Center, and personal property within the Shopping Center regardless of cause, including the negligence of Landlord or Tenant. Neither party, nor

its officers, directors, employees, agents or invitees, nor, in case of tenant, its subtenants, shall be liable to the other for loss or damage to its respective property. Moreover, Landlord and Tenant shall be relieved of their respective obligations of indemnity to the extent of the amount actually recovered by Landlord or Tenant from one or more of the insurance carriers of Tenant or Landlord. The indemnities and releases set forth in the Lease as modified and supplemented by this paragraph 7 shall survive the expiration of the term of this Lease.

8. **Exclusive Rights of Tenant.** Landlord agrees that Landlord shall not lease or permit the leasing or subleasing of or sell any space in the Shopping Center described on Exhibit A hereto during the term of the Lease and any extensions thereof to any person or entity who will utilize the space, or any part thereof, as a delicatessen or other restaurant whose operations are the same or similar to Tenant's operations or whose primary menu items are salads, soups, sandwiches, and baked potatoes or any one of more of said items. In the event that there is a breach of this paragraph by Landlord, Tenant's rights and remedies shall include, but not be limited to, the right at any time thereafter to terminate this Lease by written notice to Landlord, and, upon such election this Lease shall terminate, and the Tenant only shall be released and discharged from all further liability hereunder. This provision shall not apply to leases in existence as of the date of the Lease, unless Landlord has the right to consent, object or agree to a change of a use under an existing lease; in which event, Landlord shall not consent, object or agree to a use that is in violation with the exclusive rights set forth in this section.

9. **Subordination of Landlord's Lien.** Landlord hereby subordinates all statutory and contractual landlord's liens (and, provided Tenant is not in default at the time, agrees to sign documents so indicating, upon Tenant's request) to any liens or security interests covering Tenant's inventory, or financed fixtures, furniture or equipment of Tenant in favor of bona-fide third-party lenders providing financing to Tenant (including purchase-money financing). Additionally, Tenant shall be permitted to remove contents from the Premises without Landlord's consent (free and clear of any landlord's liens) whenever Tenant has not previously received from Landlord a written notice of default which remains uncured.

10. **Assignment or Subletting.** This Lease shall not be assigned nor the Premises sublet in whole or in part by Tenant without the written consent of Landlord. Landlord hereby agrees not to withhold or delay unreasonably its consent to an assignment or subletting in the event Tenant requests said consent. This paragraph shall not apply to: (i) an assignment or subletting to the parent or subsidiary of a corporate tenant; (ii) the dissolution or liquidation, merger with or consolidation into any other corporation, or the reorganization or redistribution of the manner by which Tenant is held, owned or operated; or (iii) any other transfer of the Premises, this lease, or any part of either, occasioned by a consolidation, merger, reorganization or other sale or similar event involving all or substantially all of the assets or stock of Tenant, provided net worth and credit worthiness of assignee is equal to or greater than that of Tenant or alternatively that Tenant agrees in writing with Landlord to remain primarily liable for payment and performance under the Lease. As used herein, the phrase "withhold or delay unreasonably Lessor's consent" shall not entitle Landlord to demand or receive in exchange therefore or as a condition thereto an amount or sum of rent or other

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financial consideration not expressly required pursuant to the terms of this Lease. Notwithstanding any provision in the Lease to the contrary, any transfers by Tenant of any ownership interest of Tenant shall not constitute an assignment, sublease or other event requiring Landlord's consent or approval.

11. **Non-Disturbance of Tenant.** The subordination provided for in the Lease shall extend only to such mortgages or deeds of trust under which the mortgagee by agreement in the mortgage or deed of trust or in a separate instrument contracts in substance not to disturb Tenant's occupancy so long as Tenant performs its obligations in the Lease on condition that Tenant, when requested by the mortgagee, shall execute an attornment agreement to the mortgagee should the mortgagee succeed to the rights of the Landlord under the Lease.

12. **Landlord's Approvals.** Notwithstanding anything to the contrary contained in the Lease, it is specifically understood and agreed that as regards any approvals or matters to be performed to the satisfaction of Landlord, the Landlord shall not unreasonably withhold or delay its approval or indication of satisfaction and shall approve or be satisfied as to any matter so long as any deviation from the requirements of Landlord are of a minor and insubstantial nature such that Landlord will realize substantially the benefits to which it is entitled. Further, any matter required to be approved by Landlord hereunder which has been approved at any time shall be deemed approved for purposes hereof.

13. **Tenant Security Systems; Landlord's Right of Entry.** Notwithstanding anything to the contrary contained in the Lease, the Tenant shall be entitled to install and maintain a burglar alarm system or other surveillance system designed to protect the Premises from unauthorized entry and shall be entitled at any time to change or re-key any and all locks used in connection with the Premises; provided, however, that in the event any lock is replaced or re-keyed, Tenant shall promptly provide Landlord with keys enabling Landlord to enter the Premises pursuant to the terms of the Lease. Landlord agrees to give Tenant at least 24 hours prior notice of Landlord's intent to enter the Premises to the extent the giving of such notice is reasonably practicable.

14. **Mechanic's Liens.** Tenant shall have the right, after written notice to Landlord, to contest in good faith and all due diligence any such mechanic's lien and shall not be required to pay any claim secured by such mechanic's lien provided that such lien would not be satisfied out of the interest of Landlord in the Premises or the Shopping Center by reason of such delay, and further provided that Tenant will at Tenant's expense defend Landlord and pay all costs reasonably incurred by Landlord relating to the contest in the event Landlord is joined in any suit pertaining thereto or in the event any lien affidavit is filed claiming a lien upon Landlord's interest in the Premises or in the Shopping Center. The foregoing sentence shall not imply any right on the part of Tenant to affect Landlord's interest in the Premises or the Shopping Center.

15. **Compliance with Laws.** Landlord and Tenant agree to comply with applicable laws, with their respective responsibilities to be allocated as follows:

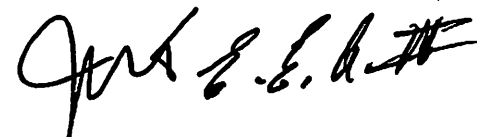
(a) Tenant will be responsible for compliance with all applicable laws, statutes, ordinances and governmental rules, regulations or requirements now in force or that may hereafter be in force with respect to the operation of Tenant's business or the Premises, including, without limitation, any accommodations or alterations that need to be made within the Premises to accommodate disabled employees and customers of Tenant pursuant to requirements under the Americans With Disabilities Act (Public Law 101-336 (July 26, 1990) and the Texas Architectural Barriers Act (Tex. Civ. Stat. Art. 9102) (collectively, the "Disability Statutes").

(b) Except for the obligations of Tenant under clause (a) above, Landlord shall be responsible for compliance with all applicable laws, statutes, ordinances and governmental rules, regulations or requirements now in force or which may be thereafter be in force that affect the Shopping Center, including with limitation, the Disability Statutes and local Shopping Center or fire code requirements applicable to the Shopping Center. If Landlord is required to make any installation in the Shopping Center pursuant to the Disability Statutes or local Shopping Center or fire codes, the cost of such installation shall be a part of Operating Expenses if such installation constitutes a day-to-day operational expense. However, if such installation constitutes a capital improvement item under generally accepted accounting principles, such installation shall be accomplished at Landlord's sole cost and expense and shall not be charged to Tenant as a part of the Operating Expenses of the Shopping Center.

16. Certain Representation, Warranties and Agreements of Landlord. Landlord represents and warrants to Tenant as follows:

(a) To the best of Landlord's knowledge, the Shopping Center does not contain any material quantities of asbestos. To the best of Landlord's knowledge neither the Shopping Center nor the land on which it is located contain any substance deemed hazardous under federal, state, or local environmental statutes, ordinances, rules, regulations, or orders ("Hazardous Materials"), other than negligible quantities of such Hazardous Materials as may typically be found in commercial construction or cleaning products used and disposed of in accordance with applicable laws. There are no underground storage tanks for petroleum products or Hazardous Materials, active or abandoned, located on the land on which the Shopping Center is located. There are no environmental liens on any of the real property comprising the Shopping Center. Landlord agrees not to cause or permit any Hazardous Materials to be produced, stored, kept, discharged, or released in or about the Shopping Center other than negligible quantities of such Hazardous Materials as may typically be found in commercial construction or cleaning products used and disposed of in accordance with applicable laws. Any provision in the Lease to the contrary notwithstanding, in no event shall Tenant be liable to Landlord for any Hazardous Materials stored, released or disposed of on the Premises prior to the commencement of the Lease by anyone other than the Tenant, or for any contamination due to Hazardous Materials in or about the Shopping Center which was not caused by Tenant.

(b) The foundation, flooring and structural components of the Premises are sufficient to support loads common to Tenant's business.



(c) Tenant will not be deemed to be a holdover tenant (and holdover rents will not apply) unless the Landlord is entitled to possession under the terms of the Lease and Tenant fails to vacated the Premises within 30 days after Tenant receives a written demand for possession from the Landlord.

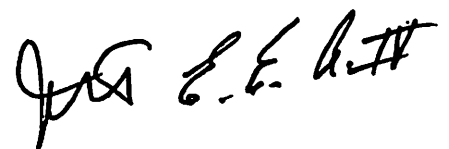
17. **Additional Warranties of Landlord.** Landlord represents and warrants that (a) as of the date of execution hereof there are no violations outstanding with any governmental agency having jurisdiction over the Premises; (b) pursuant to all applicable laws, rules and regulations promulgated by any governmental agency having jurisdiction, the Premises may be operated in the manner described in the use clause; (c) Landlord is the fee owner of the property containing the Premises and the Shopping Center of which the Premises are a part; (d) Landlord has the right to make this Lease upon the terms and for the term as set forth herein; and (e) use by the Tenant as described by this Lease and Tenant's plans and specifications is permitted by deed restriction and any other covenants governing the Shopping Center, the Premises or the Landlord. In the event of Landlord's breach of the representations and warranties as set forth herein, in addition to all other rights and remedies of Tenant pursuant to the Lease or by law, Landlord agrees to indemnify and hold harmless Tenant for all loss, cost, expense and damage (including reasonable attorneys fees) incurred as a result thereof.

18. **Renovations.** Tenant may make all non-structural, cosmetic renovations under \$15,000.00 without Landlord's consent. Landlord agrees not to unreasonably withhold or delay its consent to any other alteration or renovation.

19. **Interference.** Notwithstanding the provisions of any part of this Lease, Landlord shall not (a) interfere with the visibility, ingress or egress of the Premises, (b) disrupt Tenant's business, (c) reduce the usable area of the Premises, (d) reduce the number of parking spaces that currently exist in the Shopping Center, or (e) expose any pipes, conduits, utility lines or wires in the Premises, (f) the Premises shall at all times during the term hereof have unobstructed access to the common areas of the Shopping Center, which in turn shall have access to public road(s) abutting the property on which the Shopping Center is located. In the event of a violation of this paragraph, in addition to all other rights and remedies Tenant may have pursuant to this Lease or by law, the fixed minimum rent payable pursuant to this Lease shall be reduced in the same proportion as Tenant's gross sales are reduced as a result of Landlord's violation of this paragraph.

20. **Default.**

(a) Notwithstanding the provisions of the Lease, Tenant shall not be deemed to be in default until Tenant has received reasonable notice of such default. For purposes of this paragraph, "reasonable notice" shall be at least 5 days in the case of payment of rentals, and at least 30 days for all other events constituting a default. If Tenant cures such default within this notice period, then Landlord shall not be entitled to avail itself of the remedies described in the Lease. Additionally, Landlord shall not be entitled to exercise its rights under any provision of the Lease in the event Tenant takes action to cure a default within this notice period, but is unable, by reason of the nature of the work involved, to cure the same within



such period, provided Tenant continues to work thereafter diligently and without unnecessary delays.

(b) Provided Tenant is in compliance with all other provisions of this Lease, including the payment of all rent and additional rent (after notice and time to cure), (i) Landlord agrees that it will not invoke any of the remedies set forth in this Lease in the event of bankruptcy, insolvency or default, and (ii) Tenant will not be joined as a party defendant in any action or proceeding for the purpose of terminating Tenant's interest and estate under the Lease.

(c) No remedy set forth in the Lease shall permit Landlord to accelerate rentals and other charges prior to their due date.

(d) Tenant shall not be deemed to be in default of the terms and conditions of this Lease nor shall Tenant be charged any penalty, monetary or otherwise, as a result of (a) any temporary closing arising from (a) renovations or repairs to the Premises, or (b) a force majeure.

(e) Landlord agrees that it shall mitigate any damages it incurs as a result of a default by Tenant.

21. **Utilities.** All utilities shall be extended to usable locations within the lease premises by the Landlord. Utilities shall include 1) sanitary sewer, 2) potable water, 3) natural gas, and 4) electric power, and each utility shall comply with the following requirements:

- 1) Sanitary sewer:
4" line to receive 1) 4" non-grease waste line from restrooms and possibly dishwasher and 2) 4" greasy waste line from kitchen equipment and devices. The Landlord shall make space available outside the lease premises for the grease interceptor (approx. 5' x 9' in footprint). A usable path for connection of the grease interceptor shall be established by the Landlord.
- 2) Potable water: 2" water line at minimum 45 psi pressure. Water should be separately metered.
- 3) Natural gas: Service for water heater (140,000 BTUH) and convection oven (55,000 BTUH).
- 4) Electric power: 120/208V, 3 phase, 4 wire; 600 amp service. Remote disconnects and extension from remote meter banks shall be furnished and installed by Landlord

22. **Termination.** If, at any time during the Term of this Lease after the initial twelve (12) month period following the Commencement Date, less than seventy percent (70%) of the gross leasable space in the Shopping Center or Shopping Center of which the Premises is a part is fully occupied and open for business, then Tenant shall have the right to cancel this Lease anytime thereafter upon thirty (30) days written notice to Landlord, in which event the

Landlord shall promptly return to the Tenant the security deposit and any other sums which may be due the Tenant upon the natural expiration of this Lease.

23. **Condemnation.** If all or any portion of the Premises is condemned or if twenty percent (20%) of the parking area described in *Schedule C* is taken, then this Lease shall terminate as of the date of such taking. In the event of condemnation, nothing shall prevent Tenant from receiving any sums awarded on account of Tenant's damages and for or on account of any cost or loss to which Tenant may incur, including but not limited to, Tenant's moving expenses and loss of business, profits, leasehold interest, leasehold improvements, inventory and trade fixtures.

24. **Tenant Signs.** Landlord hereby acknowledges and approve Tenant's standard sign criteria attached hereto as *Schedule G*. Also, Tenant shall be permitted to place such sign on the exterior side of the Premises facing Arnould Boulevard. Notwithstanding anything in this Lease to the contrary, Tenant shall have the right to hang a "Coming Soon" and "Now Open" banner on the outside of the Premises. Tenant shall also have the right to place two (2) lighted neon signs in each window.

25. **Subrogation.** To the extent not heretofore released by the parties, in the event that either Landlord or Tenant sustains a loss by reason of fire or other casualty which is a type of risk covered by such part's fire and extended coverage insurance policy and/or general liability policy, and such fire, loss, or casualty is caused in whole or in part by the acts or omissions of the other party, its agents, servants or employees, then the party sustaining such loss agrees that to the extent the party sustaining such loss is compensated for such loss by its aforesaid insurance proceeds, the party sustaining such loss shall have no right to recovery against the other party, or the agents, servants or employees of the other party; and no third party shall have any right of recovery by way of subrogation or assignment or otherwise. In as much as the above mutual waiver will preclude the assignment of any aforesaid claim by way of subrogation (or otherwise) to an insurance (or any other person), each party hereto agrees to give to each insurance company which may issue to its policies of fire and extended insurance and/or general liability insurance, written notice of the terms of said mutual waivers, and to have the invalidation of said insurance coverages by reason of said waivers. In the event that any applicable law shall now be in force or hereinafter be enacted which would prevent such waiver, or in the event either party shall be unable to secure the insurance referred to herein by reason of this provision, then, and in that event only, the denial of the right of subrogation herein provided shall be deemed waived.

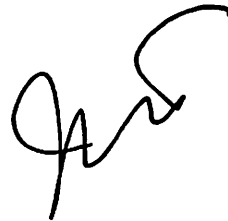
26. **Quiet Enjoyment.** Landlord does hereby bind itself to warrant and defend all and singular the premises against every person whomever claiming or to claim any right, title or interest in or to any part thereof during the term of this Lease, including any renewal or extension hereof. Landlord further warrants that during the term of this Lease, Tenant shall peaceably and quietly hold and enjoy the premises for the term hereby demised without hindrance or interruption by Landlord or any other person or persons lawfully or equitably claiming any right, title or interest thereto.

27. **Construction.**

Tenant Work. Neither Tenant nor its general contractor shall be required to obtain a performance or payment bond or a bond similar in nature to either of such bonds. Landlord hereby approves Tenant and/or Broadway Construction Company, Inc., as general contractor, and Landlord agrees that Tenant may prepare its own plans and shall not be required to employ an engineer or architect to prepare or certify such plans.

Tenant (or its general contractor) shall, at its sole cost and expense (to the extent said cost exceeds any Tenant allowances provided for in this lease) commence and pursue to completion the construction of the Tenant's Work in accordance with the Lease after it receives all of the following: (i) permits from all appropriate governmental authorities, (ii) approvals from the Landlord, (iii) approvals from any non-governmental authorities, and (iv) the completion of all work to be performed by Landlord. Tenant will provide and install all trade equipment, furniture, fixtures, and effects of every description necessary or appropriate for Tenant's business (other than those specifically to be provided by Landlord). Tenant and/or its general and subcontractors shall have access to the common area adjacent to the Premises.

If Tenant fails to open the Premises for business (except as may otherwise be excused by the terms of the Lease) on the Commencement Date, then Tenant shall be required to pay only the requisite minimum monthly rental and other payments, and Landlord hereby waives the right to any other recourse arising under the lease.

A handwritten signature in black ink, appearing to be 'JAS' or similar, located in the lower right quadrant of the page.A handwritten signature in black ink, appearing to be 'E. E. L. IV' or similar, located in the bottom right corner of the page.

In witness whereof, the parties hereby sign this Addendum this 30 day of June, 2000.

WITNESSES:

Linda H. Landry
Printed Name: Linda H. Landry

Jennifer Dinksen
Printed Name: Jennifer Dinksen

LANDLORD:

BELLE REALTY OF LAFAYETTE,
L.L.C., a Louisiana limited liability
company

By: Edward E. Abdalla, IV
Edward E. Abdalla, IV
Managing Member

[Signature]
Notary Public

WITNESSES:

Lisa Robichau
Printed Name: LISA Robichau

Willa White
Printed Name: Willa White

TENANT:

DELI MANAGEMENT, INC., a
Texas corporation

By: [Signature]
Printed Name: Joseph T. [unclear]
Printed Title: President

[Signature]
Notary Public

